IN THE SUPERIOR COURT OF JUDICATURE

IN THE COURT OF APPEAL

SEKONDI A.D. 2025

CORAM:

JUSTICE S. ROSETTA BERNASKO ESSAH (MRS.) J.A. (PRESIDING)

JUSTICE FRANCIS OBIRI (MR.) JA

JUSTICE YAA ONYAMEYE GYAKOBO (MRS.) J.A

CIVIL APPEAL NO.:H1/138/2024

DATE: 17TH DECEMBER, 2025

THE REPUBLIC

VRS

WESTERN REGIONAL HOUSE OF CHIEFS, - SEKONDI		**RESPONDENT/RESPONDENT**
EX-PARTE: NANA AWUZA III	**-**	**APPLICANT/RESPONDENT**
1. AWULAE AGYEFI KWAME II	**)**	
OMANHENE OF NSEIN TRAD. AREA	**)**	
CHIEF PALACE	**)**	
NSEIN	**)**	**INTERESTED PARTY/ APPELLANT/APPLICANTS**
2. NSEIN TRADITIONAL COUNCIL	**)**	
NEAR CHIEF'S PALACE	**)**	
NSEIN	**)**	

J U D G M E N T

SOPHIA R. BERNASKO ESSAH (MRS) JA:

This is an appeal launched by the interested party/Appellant (hereinafter referred to as the Appellant) against the ruling of the High Court Sekondi dated the 25th of June, 2019.

By that ruling the learned trial judge, granted an order of mandamus compelling the Western Regional House of Chiefs (hereinafter referred to as the Respondent) to forthwith process and transmit the Chieftaincy Declaration Forms (CD Forms) of the Applicant/Respondent (hereinafter referred to as the Applicant) Nana Awuza III, Chief of Otupai in the Lower Axim Traditional Area, to the National House of Chiefs.

Being aggrieved with this ruling of the Court below, the Appellant filed a notice of appeal on 1st July, 2019, on grounds as follows:

i. The ruling is against the weight of affidavit evidence on record
ii. The learned trial judge failed to consider the case of the interested parties/Appellants
iii. The learned trial judge erred in granting the order of mandamus in the face of clear legal impediments against the Applicant/ Respondent
iv. Additional grounds of appeal to be filed upon receipt of record of proceedings.

No further grounds were subsequently filed.

By way of background to this appeal, On the 3rd of October, 2018, the applicant Nana Awuza III, chief of the Otupai in the Lower Axim Traditional Area in the Western Region of Ghana, caused a Mandamus application to be filed seeking an order of the High Court to compel the Western Regional House of Chiefs to process and transmit the Chieftaincy Declaration Forms (CD Forms) of the Applicant to the National House of Chiefs.

It was his case that on 8th September, 2008 he was installed chief of Otupai in the Lower Axim Traditional Area of the Western Region. That pursuant to statute he subsequently applied to the Lower Axim Traditional Council to process his CD Forms and same was done and submitted to the Western Regional House of Chiefs on 1st January, 2009. This was done without any objection from any quarter.

However as at the year 2018, the Western Regional House of Chiefs had failed to process his CD Forms for onward transmission to the National House of Chiefs.

He therefore caused his lawyer to write a letter dated 19th July, 2018 and a subsequent reminder to the Western Regional House of Chiefs to protest the inordinate delay in the processing of his CD Forms. The Respondent failed to respond to those two letters.

He contends that without the processing and transmission by the Respondent of his CD Forms to the National House of Chiefs for his name to be ultimately entered in the National Register of Chiefs, he is unable to perform all the functions and duties assigned by law and/ or custom to him as Chief of Otupai.

Further that the lacuna created by reason of the delay has had and continues to have detrimental consequences for his Stool in that, a void has been created in the local government of his Stool area by reason of his name not being on the National Register of Chiefs.

He argues that the delay in processing of his CD forms by the Respondent is absolutely without justification and smacks of utmost bad faith. That the Respondent has processed and transmitted to the National House of Chiefs, CD Forms of many other Chiefs of their

chiefdoms even though the CD Forms of these other Chiefs were received by the Respondent later in time to his.

He is of the belief that the inordinate delay constitutes a refusal to process his CD Forms, hence the application for an order of mandamus to issue to compel the Western Regional House of Chiefs to process and transmit his Chieftaincy Declaration Forms to the National House of Chiefs.

It bears saying that for no reason made to the Court below the Respondent, Western Regional House of Chiefs, filed no process in the application, warranting the trial judge to comment as follows in his ruling:

> *"By odd coincidence though they (Respondents) were duly served with the process the applicant filed in connection with the instant suit. To date they have offered no reason or reasonable excuse why they refused and or failed to file any affidavit in opposition or process to contest the claim of the Applicant. Ordinarily failure by a party to respond to a process served on him is tantamount to admission of the averments contained therein or the claim of the Applicant."*

However, on the 15th of October, 2018, Awulae Agyefi Kwame II, Omanhene of Nsein Traditional Council and the Nsein Traditional Council successfully applied to join the suit as 1st and 2nd interested parties.

They opposed the application for Mandamus deposing in their affidavit in opposition that the applicant is a Divisional Chief under the Nsein Traditional Area and not Lower Axim Traditional Area therefore, his Chieftaincy Declaration Forms must be routed and processed through Nsein Traditional Council and not Lower Axim Traditional Council to the Western Regional House of Chiefs. This being a cause or matter affecting Chieftaincy, the 1st Applicant /Interested party has raised and brought up the Constitutional relationship between the Applicant and the 1st interested party as an issue

before the Western Regional House of Chiefs and the issue is still being investigated. Accordingly, there is a legal impediment against the processing and transmission of the Chief's Chieftaincy Declaration Forms as it has to be signed by the 1st Applicant/Interested party or the Registrar of the Nsein Traditional Council. That there had only been a delay in the transmission of the forms and not a refusal.

Additionally, that in any event, the Applicant has filed a motion to strike out the said suit for want of jurisdiction and the pendency of the said motion requires a dismissal or stay of proceedings of the Mandamus Application as same is therefore misplaced.

In reply pursuant to leave granted by the trial court, Counsel for applicant resisted the contention of a legal impediment, and argued that the basis for the allegation of legal impediment, postdated the demand for processing and transmission of his CD Forms and also filing of the mandamus application and therefore cannot be held to relate back. He argued that there is no such legal impediment against the processing and forwarding of the applicant's CD Forms to the National House of Chiefs.

He contended further that, the Respondent –Western Regional House Chiefs has not at any time before or in this suit stated that it has any difficulty or that it is confronted with any impediment which inhibits it from performing its statutory obligation towards the applicant. The interested parties have also not been called upon to perform any duties, to that extent the interested parties are busy bodies as far as the present application is concerned.

Finally, Counsel for the Applicant argues that the interested parties do not deny that the applicant has been duly nominated, elected and installed Chief of Otupai. The CD forms have been prepared in line with regulations and submitted to the Respondent Western Regional House of Chiefs, it therefore is surprising that the interested parties demand that the applicant's CD Forms should be rooted through them. That there are numerous

judicial decisions declaring Otupai lands as falling within the province of Lower Axim Traditional Area and not Nsein /Traditional /Area and the said judgments are exhibited to the supplementary affidavit by Applicant filed on 16th November, 2018.

In his judgment, the trial judge after analyzing the affidavit evidence and depositions before him made a categorical and definitive pronouncement that the pendency of a petition on whether the applicant is a divisional chief of Nsein Tradtional Area or Lower Axim Traditional area was not a bar to the transmission of his Chieftaincy Declaration Forms to the National House of Chiefs by the Western Regional House of Chiefs. That if in the final analysis it was held that the applicant is a Chief in the Nsein Traditional Area, Section 62 (1)

of Act 759 provides a mechanism for amendment of the National Register. He accordingly granted the order of mandamus.

It is against this judgment that the instant appeal is launched.

In respect of Ground (i) of the Appeal the submissions of the appellants are in essence that they discharged the burden of proof imposed on them by the Evidence Act NRCD 323 by producing evidence in support of their case that there existed a legal impediment to the processing of the applicants CD Forms but the trial court failed to give them the requisite weight.

This was so even though the Respondent admitted to the fact that there is a petition before the Judicial Committee of the Western Regional House of Chiefs and had additionally filed an application before the Judicial Committee praying that the petition of the appellant be struck out. That had the trial courts considered these pieces of evidence he would not have ruled in favour of the Applicant.

In respect of Ground (ii) Counsel for the Appellants submitted that the trial court erred in failing to consider adequately the pendency of the petition before the Judicial Council of the Western Regional House of Chiefs. He argued that the 'Constitutional Relationship'

between the 1st Appellant as Paramount Chief and the Applicant, as a Divisional Chief constitutes a cause or matter affecting chieftaincy within the meaning of Section 76 of the Chieftaincy Act 2008 (Act 759), and therefore falls within the exclusive jurisdiction of the Judicial Committee of the Western Regional House of Chiefs. It was his submission that the pendency of the petition operated as a legal impediment to the processing of the Applicant's CD Forms.

In respect of Ground (iii) Counsel argued that the mandamus being a discretionary remedy it may be granted or refused where special circumstances exist. That the special circumstances of a pending petition before the Judicial Committee ought to have persuaded the trial court to refuse the application. He maintained that the Western Regional House of Chiefs had not refused to perform its statutory functions but that the delay was occasioned by the pendency of the petition. The trial judge therefore failed to exercise his discretion properly.

Counsel for Applicant controverted the contentions and arguments of the Appellant in much the same terms as he did in the affidavit in support of the Notice of Motion for Mandamus and the reply.

It is necessary to restate the principles governing the prerogative writ of mandamus. Mandamus lies to compel a Respondent to perform a specified Public duty where there has been refusal, neglect or inordinate delay.

Lord Diplock observed as follows in the celebrated case of **Council of Civil Service Unions v Minister for the Civil Service [1985] AC 374 at p. 409**, in relation to judicial review in general:

> *"For a decision to be susceptible to judicial review the decision maker must be empowered by public law (and not merely, as in arbitration, by agreement between private parties) to take decisions that, if validly made, will lead to administrative action or abstention from*

action by an authority endowed by law with executive powers which have one or another of the consequences earlier mentioned by his Lordship".

An Applicant who is desirous of succeeding in an application for Mandamus, must establish the following:

1. That the duty to be compelled is of a public nature.
2. That he has a sufficient interest to be protected by the action.
3. That despite a prior request for the performance of the duty, the duty bearer has failed to comply; and
4. That there is no other equally convenient or appropriate remedy available to compel the performance of the duty.

Authorities supporting these principles include **Republic v High Court, Koforidua, Ex-parte Kofi Yeboah Affum (substituted by Opanyin Kwasi Akomeah and others, J5/24/2011 GHASC 34 15/11/2011., Republic v Chief Accountant, District Treasury, Kumasi, Ex-parte Badu [1971] 2 GLR 285; Republic v Chieftaincy Secretariat and Anr. Ex-parteAdansi Traditional Council [1968] GLR 736; Republic (No. 2) v National House of Chiefs, Ex-parte AkrofaKrukoko II (Enimil VI – Interested Party) No. 2 [2010] SCGLR 132 ; Kwakye v Attorney-General [1981] GLR 9**

The Western Regional House of Chiefs is a creature of statute. It is a public body. This is evident in Section 62(1) of the Chieftaincy Act 2008, Act 759 which imposes a mandatory duty upon the Regional House of Chiefs to report installations, depositions, abdications, deaths and other changes in the status of chiefs to the National House of Chiefs. It provides as follows:

62. (1) The installation, deposition, abdication and death of a chief in a 'region as well as other changes in the status of a chief that may be prescribed by Regulations under section 71 shall as soon as

practicable after their occurrence, be reported in writing to the National House by the Regional House."

The provision is mandatory. This duty is statutory, public in nature and exclusive to the Regional House of Chiefs. On the facts of this case, the duty which is sought to be enforced is that of the Western Regional House of Chiefs, the Respondent in this case, to transmit Chieftaincy Declaration Forms to the National House of Chiefs. Therefore, the performance which the Applicant seeks by an order of mandamus is of a public nature.

The Applicant herein, has demonstrated sufficient interest to be protected by the law. He was installed on 8th September, 2008 as chief of Otupai. This is not disputed by the interested party the Appellant herein, and as observed by the trial court, the interested party Appellant has not said anywhere in the record that they deny that the Applicant is a Chief.

Clearly the Applicant has an interest in ensuring that his Chieftaincy Declaration Form which was processed by the Lower Axim/Traditional Council and transmitted to the Western Regional House of Chiefs is processed and transmitted to the National House of Chiefs.

The Law as aforesaid requires evidence of demand by the Applicant and refusal by the Respondent before mandamus will issue.

Indeed, the learned authors in **DeSmith, Woolf, and Jowell,** treating this subject in their book, **"Judicial Review of Administrative Action" fifth edition, page 700, paragraph 16 – 012** write on Mandamus as follows:

"Demand and refusal: It is preferable for the Applicant to be able to show that he has demanded performance of the duty and that performance has been refused by the authority obliged to

discharge it. An applicant, before applying for judicial review, should address a distinct and specific demand or request to the Respondent that he perform the duty imposed upon him"

A case which supports the above formulation is **The State (Modern Homes (Ireland) Ltd.) vrs Dublin Corp. [1953 I. R. 202, 213-216.**

Also in the case of **Republic vrs Nana Akuamoah Boateng II ex-parte Dansoa and Anr [1981] GLR 333**, the Court inter alia held as follows:

> *…"Before the Court would issue a mandamus, there must be evidence of a demand to perform the act sought to be enforced and that the demand was met with a refusal"*

The parties are not is contention that the Applicant made a formal request to the Western Regional House of Chiefs for the processing of his Chieftaincy Declaration (CD) Forms. The Record of Appeal demonstrates that, by letter dated 19th of July 2018 (Reference page 4 of the ROA) the Applicant had made a formal request through his lawyer to the Respondent seeking to know the stage reached in the processing of the CD Forms of Nana Awuza 111 Chief of Otupai in the Lower Axim Traditional Area. In the said letter Counsel for Applicant stated that the CD Forms had been submitted to their outfit when he was installed in 2008, and specifically on 1st January, 2009. This fact has not been controverted by the Appellant.

Again by letter dated 24th August, 2019, (Reference Page 5 of ROA) Counsel for Applicant complained of the absence of a response to the earlier letter and requested an explanation for the delay. In that

second letter, Counsel for Applicant served notice that should no explanation be forthcoming he would be compelled to seek an order of Mandamus to compel the

Western Regional House of Chiefs to do as requested. The Respondent being the Western Regional House of Chiefs did not respond. Clearly then the Applicant had satisfied the demand criteria.

The Applicant interpreted the conduct of the Western Regional House of Chiefs as a refusal. In so saying, he relied in his written submissions on the case of **The Republic vs Central Regional Minister & Anor Exparte Action Congress Party & Anor (1981) GLR 527** Holding 2 where it was held:

> *"2) Where any public authority or official was under an absolute, and not a discretionary duty, to perform a certain function, and he refused to do so, any person who had a demonstrable interest in its performance could compel the fulfilment of the duty by Mandamus."*

He also relied on the case of the **Republic vs The High Court Koforidua Ex Parte: Kofi Yeboah Affum, interested Parties; Oseadeeyo Frimpong Manso IV and anor 15/11/2011 J5/24/2011** which held that a refusal to perform a statutory duty may be express (a positive refusal) or inferred from the conduct.

This contention, the interested party/Appellant refutes and asserts that the Respondent has not refused to comply with the request but the pendency of a Petition before the Standing Committee of the House poses a legal impediment to the transmission of the CD Forms which has caused a delay.

This brings me now to the determination of whether there has been a refusal by the Western Regional House of Chiefs to perform its statutory duty.

As afore stated, Section 62 (1) of the Chieftaincy Act provides:

"Enstoolment, deposition of a chief to be reported to the National House of Chiefs

62. (1) The installation, deposition, abdication and death of a chief in a 'region as well as other changes in the status of a Chief that may be prescribed by Regulations under section 71 shall as soon as

practicable after their occurrence, be reported in writing to the National House by the Regional House."

In my view, where an Act requires something to be done 'as soon as practicable', the duty is to act promptly, even though allowance is

made for practical considerations. The test is objective, not subjective convenience. To put this in proper context, the Western Regional House of Chiefs is required, as soon as it is capable of being done, to forward the Applicant's Chieftaincy Documents to the National House of Chiefs. And it is within the right of a Chief who is enstooled and installed properly to have his name registered in the National Register of Chiefs.

Delays may however amount to refusal without an express writing to the Applicant refusing the request. Therefore in the case of the case of **Republic vs National House of Chiefs Ex parte Krukoko 11 (2010) SCGLR134.** Date-Bah JSC held that:

> *"……And the mere fact of non-compliance with a duty would be sufficient ground for the award of mandamus, where the applicant had been substantially prejudiced by the Respondent's*
>
> *procrastination. On the facts of the instant case, the Appellant had more than satisfied the demand and refusal criteria to*
>
> *maintain the application for mandamus. Indeed, the conduct of the respondent in delaying to comply with the*
>
> *demand of the Appellant and failing to give a direct answer on the demand, was tantamount to a refusal. …"*

Similarly in **Republic v. Lands Commission; Ex parte Vanderpuye Orgle Estates Ltd (1998-99) SCGLR 677 at 727, Acquah JSC** (as he then was) held that a statutory duty must be performed without unreasonable delay, and if any such delay occurs, mandamus may be employed to enforce the performance of such duty.

The Applicant was installed in 2008 and the (Respondent) Western Regional House of Chiefs duly informed. By 2018 when his lawyers sent a reminder to the Respondent, Applicants rights had long accrued, but the CD Forms had still not been transmitted to the National House of Chief. A delay of ten (10) years is by any measure unreasonable. The delay was in all intents and purposes a refusal. And an unjustified refusal. It is a well-accepted principle of law that refusal

to act or do a thing may be express, but can also be constructive, in the form of conduct. Express refusal is where the duty bearer wrote to the applicant indicating that his request has been refused. But
where ten (10) years or thereabouts had passed and the Western Regional House of Chiefs has not transmitted the CD Forms to the
National House of Chiefs or written to refuse it as in the instant case, then it is presumed that they had impliedly refused it. Such refusal
is constructive. The case of **Ghana Railway Administration v. Ansah (1974) 1 GLR 47 relied on.**
It bears saying that given the circumstances of this matter an application for Mandamus was the only remedy available to the applicant and same was rightly relied on.
Counsel for the Appellant however contends that the pendency of a petition before the Judicial Committee of the Western Regional House of Chiefs constitutes a legal impediment restraining the House from transmitting the CD Forms. He argues that the Constitutional relationship between the 1st Appellant, as paramount chief, and the Applicant/Respondent, as a divisional chief, necessarily requires the routing of the Respondent's CD Forms through the 2nd Appellant.

This, issue he submits, amounts to a cause or matter affecting chieftaincy within the meaning of section 76 of the Chieftaincy Act,

2008 (Act 759), and therefore falls within the exclusive jurisdiction of the Judicial Committee of the Western Regional House of Chiefs.

Counsel further asserts that the dispute arises from the failure of the Respondent's Awuza Atwea Stool, a divisional stool owing allegiance to the Appellants' paramount stool, to comply with the established customary relationship. He maintains that such conduct undermines the constitutional and customary bond between the parties, which has subsisted since time immemorial. In his view, the only lawful recourse available to the Appellants when their paramount authority is threatened is to petition the Judicial Committee of the Western Regional House of Chiefs, which they have duly done.

Accordingly, Counsel submits that the pending petition operates as a bar to the processing and transmission of the CD Forms by the Western Regional House of Chiefs, particularly as the forms were improperly routed through the Lower Axim Traditional Council, a distinct traditional council.

Now Exhibits 1- 4 relied on by the Appellants and found on pages 65,70,74, 78 & 83 of the ROA, are excerpts of minutes of meetings of the Standing Committees and Research Committees and General

meetings of the Western Regional House of Chiefs. All these meetings though were held after the letters of the applicant written on 19th

July, 2018 & 24th August, 2018. Exhibit 1, which is also an excerpt of minutes of a meeting makes reference on page 68 of the ROA to a Standing Committee discussion of the Awuzu Stool matter during its meeting held on 19th February, 2019 suggesting thereby that it was held after the Notice of Motion for an order of Mandamus was filed on 3rd October, 2018. The Appellants petition found on page 83 of the ROA, was filed on 29th October, 2018. Clearly, these documents cannot constitute legal impediments to the processing of CD Forms which had been submitted nearly ten years earlier and the Respondent informed.

In my view, the timing of the filing of the petition-after the Applicant had already filed his Mandamus Application- is suggestive of a contrived action intended to overreach the Applicant and circumvent his application. Expressed in another way, the timing of the said

"legal impediment" appears to have been a reactive measure to block the Mandamus. Importantly the said legal impediment was raised solely by the interested parties Appellant, who were not the statutory body
charged with processing the forms. This weakens the argument of Counsel for Appellant that a genuine legal bar existed. In my view the
petition having been initiated by interested parties, and not the Western Regional House of Chiefs itself, cannot constitute a legal impediment to the Western Regional House Chief's performance of its statutory duty.
The above apart, the Applicant had accrued the right to have his Forms processed before the petition was filed. By statute, once the CD Forms were properly submitted, he was entitled to have it processed. The petition which was filed at the time it was cannot retroactively nullify his accrued Statutory right.
It is apposite to note that in the circumstances where there is no dispute as to the Applicant's status as a Chief, and the Respondent has refused to set the statutory machinery in motion, the Applicant
is entitled to the Court's assistance in the nature of Mandamus to enable him to exercise his rights under the Chieftaincy Act.

In the case of **R. V. Secretary of State for the Home Department, ex-parte Phansopkar [1976] QB 606** it was held that the mere fact
of non compliance with a duty is sufficient ground for the award of a mandamus, where the applicant has been substantially prejudiced by the Respondents procrastination.

The applicant has demonstrated prejudice by the delay or failure of the respondent to transmit his document. He asserts that without the processing and transmission by the Respondent of his CD Forms to the National House of Chiefs for his name to be ultimately entered in the National Register of Chiefs, he is unable to perform all the functions and duties assigned by law and or custom to him as Chief of Otupai. Further that the lacuna created by reason of the delay has had and continues to have detrimental consequences for his stool in that a void has been created in the local government of his stool area by reason of his name not being on the National Register of Chiefs. This has not been refuted by the Interested Party/Appellant or the Respondent Western Regional House of Chiefs. Same is deemed to be true.

Even if the petition ultimately succeeds in altering the Applicant's traditional jurisdiction, the Chieftaincy Act provides a mechanism in
(Section 62(1) of Act 759) to amend the National Register of Chiefs. Thus, the existence of the petition does not prejudice the registration of the applicant's name and cannot justify withholding mandamus.
Considering the totality of the facts before this Court and the principles of law governing Mandamus, this Court holds that the
Applicant has satisfied the demand and refusal criteria set out supra. The alleged legal impediment arising from the petition and Committee meetings held after the Applicant's demands and after the filing of the mandamus application cannot justify the Respondent's failure to perform its statutory duty. The Applicant/Respondent satisfied all the pre-requisites for the grant of a Mandamus application.
The trial judge exercised his discretion rightly in granting the mandamus application. Being a discretionary remedy, the judge needed to weigh up the equities of the case and reading the ruling, this was satisfactorily done. The case of the Interested Party was amply considered in arriving at its decision to grant the Mandamus application.

In determining this Appeal, cognizance has been taken of the fact that an appeal is by way of rehearing {reference **Republic vs Condua**

Exparte Aaba (Substituted by Asmah (2013-2014) 2SCGLR 1032; Tuakwa vs Bosom (2001-2002) SCGLR 61 and **Oppong Vs Anarfi (2011-2012) 2 SCGLR 556**}, and rehearing implies an evaluation of the affidavit evidence and assessment of all documentary evidence

and case law. I come to the firm conclusion that the judgment of the trial High Court must be affirmed and the Appeal dismissed.

The Appeal accordingly fails and is dismissed. The order of Mandamus granted by the High Court, Sekondi on directing the Western Regional House of Chiefs to transmit the Chieftaincy Declaration Forms (CD Forms) to the National House of Chiefs is hereby affirmed.

Conclusion:

In conclusion, I hold that the delay of ten (10) years, without explanation from the Western Regional House of Chiefs, amounted to a constructive refusal to perform its statutory duty. The petition filed

after the Mandamus application cannot qualify as a "legal impediment" because

- It was raised too late.

- It was not asserted by the Western Regional House of Chiefs the statutory body itself, and
- It cannot retroactively nullify an accrued right.
- Moreover, the petition was initiated by interested parties, not the Western Regional House of Chiefs itself, and therefore cannot constitute a legal impediment to the Western Regional House of Chief's performance of its statutory duty. The existence of the petition does not prejudice the registration of the Applicant's name and cannot justify withholding Mandamus. The Appeal fails.

Costs of GH₵15,000.00 against interested party.

SGD

……..

JUSTICE SOPHIA R. BERNASKO ESSAH

(JUSTICE OF THE COURT OF APPEAL)

SGD

I AGREE ……

JUSTICE FRANCIS OBIRI

(JUSTICE OF THE COURT OF APPEAL)

SGD

I ALSO AGREE …….

JUSTICE YAA ONYAMEYE GYAKOBO

(JUSTICE OF THE COURT OF APPEAL)

PARTIES:

APPLICANT/RESPONDENT – PRESENT

1ST INTERESTED PART/APPELLANT REPRESENTED BY HERBERT BAKER.

2ND INTERESTED PARTY REPRESENTED BY NANA PREY MENSAH

COUNSEL:

ANDREW TAYLOR FOR INTERESTED PARTY

JOHN MERCER FOR APPELLANT RESPONDENT